

**DRAFT — review by an attorney before use.**

# Model Release

## **For photographs licensed to Cooper Industries for use in the Prompted app**

This release is between the person photographed (the "Model"), the photographer named below (the "Photographer"), and Cooper Industries (support@cooperindustries.cc), the publisher of the Prompted iOS app.

### **1. What I am agreeing to**

In exchange for good and valuable consideration, the receipt of which I acknowledge, I grant the Photographer, and through the Photographer, Cooper Industries and its licensees, the irrevocable, perpetual, worldwide right to use photographs of me taken at the shoot described below (the "Photographs") for the purposes in Section 2, in any medium now known or later developed.

### **2. Permitted uses**

The Photographs may be reproduced, displayed, distributed, cropped, resized, colour-corrected and otherwise edited for:

- **The Prompted app.** As pose reference images in the Prompted pose library, including in-app screenshots, session lists, Shoot Mode, shared pose cards and exported PDF contact sheets.
- **Marketing of Prompted and Cooper Industries.** Including the cooperindustries.cc website, the App Store listing and screenshots, social media (including Pinterest, Instagram and similar services), email, paid advertising and press materials.

The Photographs will not be used in a way that is defamatory, sexually explicit, or that presents me as endorsing any product other than Prompted and Cooper Industries. My name will not be published alongside the Photographs unless I request it in writing.

### **3. Waiver**

I waive any right to inspect or approve the finished Photographs, any edited version of them, or the copy or context in which they appear. I release the Photographer and Cooper Industries from any claim arising from use of the Photographs as permitted here, including claims for invasion of privacy, right of publicity, defamation, or compensation.

### **4. Ownership**

I understand the Photographer owns the copyright in the Photographs and that I acquire no ownership interest in them. Nothing in this release obligates the Photographer or Cooper Industries to use the Photographs.

### **5. For minors**

If the Model is under 18 (or under the age of majority where the shoot took place), this release must be signed by a parent or legal guardian. By signing, the guardian confirms that they have legal authority to consent on the Model's behalf, agrees to every term above on the Model's behalf, and agrees not to revoke this consent when the Model reaches the age of majority. Cooper Industries will not publish a minor's name.

## 6. General

I am at least 18 years old or my guardian has signed below. I have read this release and understand it. This release is the whole agreement about the Photographs and may be changed only in a writing signed by all parties. It is governed by the laws of the state where the Photographer is based.

### Shoot

|                            |       |
|----------------------------|-------|
| Shoot date                 | _____ |
| Shoot location             | _____ |
| Description of Photographs | _____ |

### Photographer

|                        |                         |
|------------------------|-------------------------|
| Name                   | _____                   |
| Business name (if any) | _____                   |
| Email                  | _____                   |
| Signature              | _____ <b>Date:</b> ____ |

### Model

|                |                         |
|----------------|-------------------------|
| Full name      | _____                   |
| Date of birth  | _____                   |
| Address        | _____                   |
| Email or phone | _____                   |
| Signature      | _____ <b>Date:</b> ____ |

### Parent or legal guardian (required if the Model is a minor)

|                       |                         |
|-----------------------|-------------------------|
| Full name             | _____                   |
| Relationship to Model | _____                   |
| Address               | _____                   |
| Email or phone        | _____                   |
| Signature             | _____ <b>Date:</b> ____ |

*Keep a signed copy. The Photographer keeps the original and confirms to Cooper Industries that a release is on file for every identifiable person in each submitted frame.*